

ELEANOR R. WILKING

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ACADEMIC APPOINTMENTS

Cornell Law School

Assistant Professor of Law

2020 – Present

Courses: Tax Policy, Federal Income Taxation, Law & Economics Colloquium

New York University School of Law

Acting Assistant Professor of Tax Law

2018 – 2020

Courses: Survey of Tax Procedure, Tax Policy, Corporate Tax I

Northwestern Pritzker School of Law

Fellowship in Empirical Legal Studies

2017 – 2018

Courses: Tax Policy (w. Sarah Lawsky)

EDUCATION

University of Michigan

Ph.D., Economics

2018

Dissertation: “Essays in the Economics and Law of Taxation”

Committee: Joel Slemrod (chair), James R. Hines, Jr., J.J. Prescott, Charles Brown

Fields: Public Finance, Law and Economics, Labor Economics

J.D., *cum laude*

2015

M.A., Economics

2013

Harvard University

A.B., Economics & History

2009

RESEARCH AND TEACHING INTERESTS

Primary: Federal Income Taxation, Corporate Taxation, Employment Law, Business Associations, Contracts

Secondary: Property, Estates and Trusts, State and Local Taxation, Empirical Methods, Law and Economics

OTHER EXPERIENCE

U.S. Department of Treasury

Economist, IRS Research Affiliate Program

2016 – Present

University of Michigan Law School

Student Attorney, Low Income Taxpayer Clinic

2015 – 2016

Research Assistant, J.J. Prescott

Winter 2015

University of Michigan, Department of Economics

Research Assistant, Joel Slemrod	2013 – 2014
Graduate Student Instructor, Money and Banking	2013 – 2014
Graduate Student Instructor, Intermediate Econometrics	2015 – 2016

Stanford University

Research Analyst, Center for Research on Education Outcomes (CREDO)	2009 – 2011
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PUBLICATIONS

Please note that in the field of Economics, authors are listed alphabetically rather than by contribution.

[“Retailer Remittance Matters: Evidence from Voluntary Collection Agreements”](#) (w. Yeliz Kacamak and Tejaswi Velayudhan). *National Tax Journal*, June 2023, 76(2).

[“Independent Contractors in Law and in Fact: Evidence from U.S. Tax Returns,”](#) *Northwestern University Law Review*, November 2022, 117(3).

Selected for Harvard-Stanford-Yale Junior Faculty Forum

Reviewed in [Jotwell](#) (Jan. 10, 2023)

[“Using a Natural Experiment in the Taxicab Industry to Analyze the Effects of Third-Party Income Reporting”](#) (w. Bibek Adhikari, James Alm, Brett Collins, and Michael Sebastiani). *Journal of Economic Behavior and Organization*, December 2021, 193: 312–333.

[“Expert and Public Attitudes Towards Tax Policy: 2013, 1994, and 1934”](#) (w. Diane Lim and Joel Slemrod). *National Tax Journal*, December 2013, 66(4): 775–806.

WORKING PAPERS

“Leave the Data, Take the Money: Hard Choices in Platform Regulation Understood through Airbnb” [Paper available upon request]

Abstract: Firms are central to virtually all tax systems: they are both objects of taxation and vital to the efficient collection of individual tax liabilities. In this latter capacity, firms assist the government in two ways: first, by supplying information on individuals' earnings (“information reporting”), and second, by remitting individual tax liabilities to the government through withholding (“tax collection”). Though these functions often coincide, they can exist independently. Recent academic work and policy making in tax enforcement has focused on the use of information reporting to combat tax evasion. But information alone may be of limited value if the state's own collection capacity is weak. In contrast, the focus of this paper is on tax collection without information reporting, which, while uncommon, is highly relevant to the taxation of digital platform firms. Specifically, I examine cities' efforts to collect hotel taxes on transactions facilitated by short term rental firms like Airbnb. After conventional attempts to recoup lost hotel tax revenue stalled, many cities turned to an unusual tool: voluntary collection agreements (VCAs). VCAs deputized Airbnb to remit hotel taxes on behalf of hosts while at the same time relieving the company of any duty to share data on individual parties or taxable transactions with cities. In this way, VCAs decoupled the information reporting and collecting functions firms often perform to facilitate efficient tax collection. While having firms both report information and collect taxes is likely the optimal policy in most contexts, I argue that there are circumstances in which collection without information reporting is the only realistic path to tax revenue collection in the medium term. However, this option may come at a high price for

governments, as it is detrimental to their efforts to enforce non-tax regulations and potentially undermines revenue collection efforts in the long run.

[“Amateurs and Incidence: Evidence from a Natural Experiment Involving Airbnb and Hotel Taxes”](#)
(w. Yeliz Kacamak and Elisa Cheng)

Abstract: How does the obligation to remit affect consumption tax incidence? In classical tax theory, assigning the responsibility to transfer tax revenue to the government has no effect on which party bears the economic burden of a consumption tax. I explore this prediction in the context of agreements between city governments and a large digital platform firm that shifted the obligation to remit hotel taxes from independent renters to the platform firm itself. Using variation in the location and timing of these agreements, I identify a substantial increase in advertised tax-inclusive rental prices—a violation of remittance invariance—but comparatively modest declines in completed reservations. A contemporaneous increase in hotel tax revenue collections suggests that the policy was an effective tax increase, assessed on previously non-compliant renters. I also explore heterogeneity in pass-through of this effective tax increase using several proxies for renter price-setting sophistication. Passthrough was lowest among full-space, frequent renters who likely faced smaller optimization frictions relative to more amateur renters. My results indicate that shifting the remittance obligation to the platform increases after-tax prices and raises revenue, suggesting that consumers bear a greater share of the tax burden when the remittance obligation is shifted to a party with fewer evasion opportunities.

[“Independent Contractors in the U.S.: New Trends from 15 years of Administrative Tax Data”](#) (w. Katherine Lim, Alicia Miller, and Max Risch). *U.S. Treasury Working Paper*.

Abstract: There is growing interest among policy makers and researchers in measuring the prevalence of independent contractors (ICs), partially due to concern that these workers do not enjoy the benefits provided to employees. However, identifying IC income is difficult because most existing datasets do not track it. We make two contributions to understanding changing patterns of IC income receipt. First, we translate the legal concept of an IC relationship into one that can be used to identify these relationships in tax data. Second, we use those data to establish several new empirical facts about individuals who receive IC income and the firms that contract with them. We find that the share of workers with IC income has grown by 1.5 percentage points, or 22 percent, since 2001, pre-dating the rise of the gig economy and in line with previous estimates of IC growth. Independent contractor income receipt and its growth are not evenly distributed across workers. The largest share of workers with IC income are those in the top quartile of earnings who primarily receive wage income. But the fastest growing group are those in the bottom quartile of earnings who primarily receive IC income. Women saw more growth in IC income receipt than men, and smaller firms saw more growth in IC labor usage than larger firms. Together, these trends suggest that the long-run growth in IC labor in the U.S. cannot solely be attributed to individuals seeking supplemental income, or to the rise of a few online platform firms, but may represent a structural shift in the labor market, particularly for women.

WORKS IN PROGRESS

“The Law and the Gig Economy” (invited submission, Law & Social Science 2026 Annual Review)

“How Does the Public Learn about Tax Enforcement? Tax Preparer Firms and Other Networks” (w. Brian Galle, Peter Henderson, and Yeliz Kacamak)

“What is the Impact of Federal Income Tax Withholding on Poor Taxpayers? Evidence from U.S. Tax Data”
(w. Ari Glogower & Jacob Goldin)

SELECTED ACADEMIC PRESENTATIONS

2025: Michigan Tax Invitational (discussant); University of Virginia Law and Economics Colloquium; George Mason Antonin Scalia School of Law Economics Workshop, Yale Law School Law and Economics Colloquium.

2024: National Tax Association Conference at Detroit; Conference of Empirical Legal Studies at Emory; Northwestern Pritzker School of Law Economics & Law Workshop; University of Virginia Tax Round Table; Clarke East Asian Center Past, Present, and Future of Law & Economics in Asia Conference (moderator, discussant); University of California at Berkeley Law & Economics Colloquium; International Institute of Public Finance Annual Conference (Prague); CeMENT (American Economic Association Mentoring Conference); University of Utah Tax Invitational; Junior Tax Annual Conference; Harvard-Yale-Stanford Junior Faculty Forum; American Law and Economics Association at Michigan; Columbia Law Tax Roundtable; Clarke East Asian Center Lay Participation Roundtable (moderator, discussant); Northwestern University Pritzker School of Law Tax Policy Workshop; Duke Colloquium on Empirics and the Law; Cornell Faculty Winter Retreat.

2023: University of Minnesota Law Faculty Seminar; Michigan Tax Invitational, American Law and Economics Association Annual Meeting (Boston); Junior Tax Annual Conference; Conference on Empirical Legal Studies (Chicago); National Tax Association Annual Conference (Denver); Cornell Empirical Legal Studies in the Sinophone Region Conference (moderator and discussant).

2022: Boston College Law School Junior Faculty Roundtable; The University of Utah S.J. Quinney College of Law Tax Invitational; Junior Tax Annual Conference at University of Illinois Urbana-Champaign; Junior Tax Annual Conference; Harvard University/Yale University/Stanford University Junior Faculty Forum; Annual Law & Economics Association Meeting; U.S. Treasury Office of Tax Analysis Annual Research Conference; Conference of Empirical Legal Studies at University of Virginia; Colloquium on Scholarship in Employment and Labor Law (Nashville); Columbia Law School Law & Economics Colloquium; National Tax Association Annual Meeting (*paper accepted*); Boston College Tax Colloquium.

2021: Duke University School of Law Tax Policy Seminar; Southeastern Association of Law Schools Annual Conference; Indiana University Bloomington Maurer School of Law Tax Colloquium; University of Southern California Gould School of Law Faculty Workshop; Junior Tax Annual Conference; National Tax Association (discussant); Cornell Dean's Advisory Board Annual Meeting; University of Michigan Tax Invitational (discussant); University of Florida Tax Colloquium; Cornell Center for Social Sciences Junior Fellows' Workshop

2020: Northeastern University School of Law; The University of Chicago Law School; Northwestern Pritzker School of Law; Stanford University Workshop on Tax Policy and Public Finance; Washington University in St. Louis School of Law, Law and Economics Workshop; Annual Law and Economics Association, Chicago (*paper accepted*); Virtual 95th Annual Conference - Western Economic Association International; Florida-Michigan-Virginia Law and Economics Virtual Series; University of Michigan Law School, Law and Economics Workshop (*virtual*)

2019: University California Los Angeles Colloquium on Tax Policy and Public Finance; Georgetown Tax Law and Public Finance Workshop; University of Texas Law and Economics Seminar; Fordham University School of Law; American University Washington College of Law; Michigan State University College of Law; Sturm College of Law of University of Denver; Wayne State University Law School; Antonin Scalia Law School at George Mason University; Vanderbilt Law School; Duke University School of Law; University of Houston Law Center; University of Florida Levin College of Law; University of Wisconsin Law School; Harvard Law School; Conference on Empirical Legal Studies, Claremont McKenna College; University of California, Davis School of Law; University of California, Berkeley Law; National Tax Association Annual Conference, Tampa; Cornell Law School

2018: Annual Law and Economics Association, Boston University; Conference on Empirical Legal Studies, University of Michigan; National Tax Association Annual Conference, New Orleans

2017: Annual Law and Economics Association, Yale University; International Institute of Public Finance Annual Congress, Tokyo; National Tax Association Annual Conference, Philadelphia

2016: Michigan Tax Invitational; Conference on Business Taxation, Oxford University; National Tax Association Annual Conference in Baltimore; Midwestern Law and Economics Association Conference, Marquette University; Conference on Empirical Legal Studies, Duke University

FELLOWSHIPS, GRANTS, AND AWARDS

Cornell Center for Social Sciences Junior Faculty Fellowship (\$10,000)	2022
President's Council of Cornell Women Award (\$8,730)	2022
Russell Sage Foundation, "Future of Work" (\$149,000)	2021
Michigan Economics Department Service Award	2018
Rackham Dissertation Award (\$5,000)	2016
NSF Graduate Research Fellowship (\$129,000)	2012 – 2017
Rackham Merit Fellowship (5 years tuition and stipend)	2012 – 2017

PROFESSIONAL SERVICE

Journal of Empirical Legal Studies

United States Editorial Advisory Board	2020 – Present
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American Law & Economics Association

Area Organizer for Labor & Employment	2024
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Tax Law Review

Assistant Editor	2018 – 2020
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Graduate Economics Society, University of Michigan

Co-President	2016 – 2018
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Referee for *American Economic Journal: Economic Policy*, *Yale Law Journal*, *National Tax Journal*, *American Law & Economics Review*

SELECTED MEDIA

Quoted in [*Disney vs. DeSantis: Dissolving Theme Park's Self-Government Won't Be So Simple*](#), BISNOW MEDIA, May 3, 2022.

Quoted in [*Ron DeSantis Says Ending Disney's Self-Governing Status Will be a 'Process.' Here's What Might Happen Next*](#), CNN, April 27, 2022.

Quoted in *Tax Professors Laud Incoming Justice Jackson's Rulings as Thorough, Well-Reasoned*, THOMSON REUTERS, April 8, 2022.

Quoted in [*2 Tax Opinions From Judge Ketanji Brown Jackson To Know*](#), LAW360, Feb. 28, 2022.

Quoted in [*Fact-checking Harris' and Pence's Claims About Taxes*](#), MARKETPLACE, Oct. 9, 2020.